

Notice of Motion — General Template

Pleading format — adapt the caption to your court and case

How to use: Fill in the caption exactly as it appears on your filed case documents. Check your court's local rules for formatting, filing deadlines, and required copies. Number every page.

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF [_____]

[Plaintiff/Petitioner Name], _____

Plaintiff/Petitioner, vs.

[Defendant/Respondent Name], _____

Defendant/Respondent.

Case No.: [_____] _____

Dept.: [] Judge: [_____] _____

Hearing Date: [MM/DD/YYYY] Time: [__:__ M] _____

NOTICE OF MOTION AND MOTION FOR [state the relief requested]

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on [date], at [time], in Department [] of the above-entitled court, located at [courthouse address], [Moving Party Name] will move the court for an order:

1. [State exactly what you are asking the court to do.]
2. [Additional relief, if any.]

This motion is based on this notice, the attached memorandum of points and authorities, the declaration(s) filed herewith, all pleadings and records on file, and any oral argument the court may allow.

Date: [MM/DD/YYYY] _____

Signature: _____

[Printed Name, address, phone] _____